

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMADOU R. BARRY

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER MAYKY SANTOS (Shield #2317)
P.O.s JOHN DOE #1-5

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 19, 2024

SIVIN, MILLER & ROCHE, LLP

By /s/ Duane Blackman
Duane Blackman
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

MAMADOU R. BARRY

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
POLICE OFFICER MAYKY SANTOS (Shield #2317)
P.O.s JOHN DOE #1-5

Defendants.

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Plaintiff, Mamadou R. Barry (“plaintiff”) by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his complaint herein, alleges as follows, upon information and belief:

NATURE OF ACTION

This is a civil rights action concerning the misconduct of New York Police Department (“NYPD”) police officers including, Police Officer (“P.O.”) Mayky Santos and P.O. John Does #1-5 in unlawfully stopping, searching, using excessive and unreasonable force against plaintiff Mamadou R. Barry (“plaintiff”) while he walked home. Mr. Barry brings this action under 42 U.S.C. § 1983 and also raises supplemental state law claims concerning the actions of the officers in order to hold them accountable for their misconduct.

THE PARTIES

1. That at all times herein mentioned, the plaintiff MAMADOU BARRY was and is a resident of the Bronx, City and State of New York.

2. That at all times herein mentioned, defendant the City of New York, hereinafter “the City” was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That prior to the institution of this action and within ninety (90) days from plaintiff's October 7, 2023 incident, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant P.O. Mayky Santos (hereinafter "Santos") was a police officer employed by the NYPD.

6. That at all times herein mentioned, Santos was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Santos was acting under color of state law.

8. That at all times herein mentioned, defendant P.O.s John Doe #1-5, are fictitious names intended to represent P.O.s whose identities are currently unknown to plaintiff, and who were involved in the incident described *infra*, and were duly sworn police officers of said department.

9. That at all times hereinafter mentioned, P.O.s John Doe #1-5 were acting within the course and scope of their employment with the NYPD.

10. That at all times hereinafter mentioned, P.O.s John Doe #1-5 acted under color of state law.

11. That at all times herein mentioned, any additional officers referenced in this complaint were acting within the course and scope of their employment with the NYPD

and under color of state law.

THE FACTS

12. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

13. That on October 7, 2023, plaintiff resided with his mother at 442 Jackson Avenue, Bronx County.

14. That on the evening of October 7, 2023, as plaintiff was walking home, he observed an unmarked police car driving down the street coming towards him.

15. That plaintiff was concerned and so he took out his phone and began recording.

16. That as plaintiff continued walking, he observed the unmarked police vehicle begin to reverse.

17. That plaintiff then made a left turn onto Jackson Avenue where he observed a black SUV that he also believed to be an unmarked police vehicle.

18. That as plaintiff continued walking, he was approached by several NYPD officers, including P.O. Santos, (hereinafter referred to collectively as “the officers”), who without justification, took plaintiff’s phone threw it to the ground, then forcibly grabbed , assaulted, and seized plaintiff without his permission or consent.

19. That the officers, without a warrant or probable cause or even reasonable suspicion to believe plaintiff had committed or was about to commit a crime or criminal violation then searched plaintiff’s person.

20. That following their forcible search and seizure, the officers released plaintiff from their custody without filing any criminal charges against him or even issuing

plaintiff a summons or a desk appearance ticket.

21. That at no time during this incident did plaintiff use any force against the officers or do anything that would have provided the officers with a legal basis to use force against him.

22. That the unjustified force against plaintiff was unreasonable and excessive.

23. That at no time did plaintiff commit any offense, and that there was no legal cause to justify the stop, and detention of plaintiff

24. That the actions and conduct of the officers herein were willful, reckless, and in callous disregard of plaintiff's rights under federal and state law.

25. That as a result of the foregoing, plaintiff suffered and continues to suffer physical and psychological harm, pain and suffering, some or all of which may be permanent, and financial losses.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault and Battery Under New York State Law)

26. That the aforesaid actions of P.O. Santos and P.O. John Does #1-5 constitute an assault and battery upon plaintiff, for which these officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

27. That as a direct and proximate cause of the assault and battery described above, plaintiff suffered severe physical injuries, pain and suffering, emotional trauma, and other injuries all of which are permanent in nature.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Unreasonable Seizure Under NYC Administrative Code § 8-802)

28. That the aforesaid actions of the officers, including but not limited to P.O. Santos and P.O. John Does #1-5 including the unlawful and unreasonable seizure, search and use of excessive force against plaintiff, and the failure to intervene, entitle plaintiff to recover damages from defendants pursuant to NYC Administrative Code § 8-802.

29. That as a result of defendants' unlawful acts against plaintiff, he sustained, among other things, bodily injuries, emotional trauma, and a deprivation of his rights.

THIRD CAUSE OF ACTION AGAINST P.O SANTOS AND P.O. JOHN DOES #1-5
(42 USC § 1983 Claim Arising Out of the Unreasonable Seizure, Search and Use of Excessive Force)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforesaid seizure, search and use of excessive force, and the failure to intervene to prevent same, constitute illegal seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to him under the Fourth Amendment to the US Constitution, and entitle him to recover damages pursuant to 42 USC § 1983.

32. As a result of defendants' excessive use of force, unlawful seizure, search, and failure to intervene to prevent harm to plaintiff, he, among other things, suffered bodily injuries, emotional trauma, and deprivation of constitutional rights.

FOURTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That defendant City of New York selected, hired, trained, retained, assigned and supervised all members of the NYPD, including the defendant officers.

35. That defendant the City of New York was negligent and careless when it selected, hired, trained, retained, assigned and supervised the police officers that participated in the incident, including the defendant officers.

36. As a direct and proximate result of the above actions, plaintiff suffered severe physical and emotional injuries, some of which are permanent in nature.

37. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against P.O. Santos and P.O. John Does #1-5 and attorney's fees against all defendants pursuant to 42 USC § 1988 and NYC Administrative Code § 8-805. Plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
November 19, 2024

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By /s/ Duane Blackman
Duane Blackman
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

Duane Blackman an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am an attorney for the claimant in the within matter.

That I have read the foregoing Claim and know the contents thereof, that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters, I believe to be true.

That the reason this verification is made by your affirmant and not by the claimant is that claimant is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in claimant's file maintained by your affirmant's office.

Dated: New York, New York

November 19, 2024

/s/ Duane Blackman
DUANE BLACKMAN